least ten days before the return-day of such writ, the court shall," &c. It then goes on and enacts, that, in such case, "the court shall order the proceedings to be made up, and the cause tried at the first court."

This bare recital or preamble, without one enacting word, is what is supposed to have effected this important change in the law of Virginia, relative to the liability of an indorser. Much stress was laid, in the argument, upon the use of the word "indebted," as applied to the indorser, the words, "negotiable at the said bank," and words which suppose the commencement of a suit, as soon as a note "becomes due." I positively deny the correctness of maintaining any repeal or alteration in the principle of a law, upon an implication drawn from a mere preamble or recital to an act. Enacting words will undoubtedly often produce a repeal by implication, but a recital or preamble sets forth merely the motives or inducements of the legislator, and, whether founded in error or truth, serves no other purpose than to justify him to those for whom he is legislating, or, at times, to assist in developing the meaning of doubtful enacting words. Admit the principle, that a preamble may have the effect of enacting words, and there is no necessity for dilating on the inextricable absurdities in which a court may be involved. In the case before us, it is possible, that the legislature may have supposed, that the law of Virginia would sanction an immediate suit against the indorser, without evidence of the maker's insolvency; *but their courts of justice have decided otherwise; and it would be singular, if an erroneous opinion, entertained by that body, should have all the effects of a law passed by it. [*56

But there is not a word contained in this preamble which may not be fully satisfied, without producing any necessary implication against the general law of Virginia, relative to the liability of the indorser. When the legislature speaks of a person indebted by indorsement, it can only be understood to speak of one indebted according to the legal liability of an indorser; which is only, by the laws of Virginia, in case of the insolvency of the maker. When it speaks of a consent in writing, that it may be negotiable at the said bank, it can only mean what it expresses; and intends it for the purpose of subjecting the individual to the summary recovery given in such a case; for, as to his general liability as indorser, such a consent was in no wise necessary; that liability existed in its full extent, without it. And as to the supposition of the indorser's liability to be sued, when the note becomes due, this also is strictly and literally true, if the maker should then be insolvent, or (I suppose) if he should become so, at any time before the trial of the issue.

Upon the whole, therefore, it appears to me, that there is no possible difference between the liability of an indorser, generally, and an indorser of a note negotiable in the bank of Alexandria; that the legislature intended to make no distinction; and if it had expressly declared such to be its intent, no such change would have been produced, without following up that intention with sufficient enacting words; but that, in fact, its sole object was to do that which it professes to intend, and alone has effected, viz., to give a summary remedy against all persons becoming indebted to that bank, whenever their legal liability is incurred. In fact, it may, with the utmost correctness, *be affirmed of an indorser, that he is indebted, and that he may be sued, when the note becomes due, without at all interfering [*57